

EXECUTIVE EMPLOYMENT AGREEMENT

(VP of Engineering — Full-Time At-Will Employment)

EMPLOYER	EMPLOYEE
NovaSpark Inc. 2201 Technology Pkwy, Suite 1100 Seattle, WA 98101 EIN: 91-3047285 HR Contact: hr@novaspark.example	Alexander P. Thornton 4872 Maple Ridge Drive Bellevue, WA 98004 SSN: ***-**-7841 (on file) Email: athornton@personal.example

Start Date:	April 7, 2025	Agreement No.:	EEA-2025-0033
Position:	Vice President of Engineering	Reports To:	Chief Technology Officer
Employment Type:	Full-Time, At-Will	Governing Law:	State of Washington

1. POSITION & DUTIES

1.1 Employee is hired as Vice President of Engineering ("VP Engineering") and shall report directly to the Chief Technology Officer. Employee shall have overall responsibility for leading NovaSpark's engineering organization, including software development, infrastructure, security, and technical operations.

1.2 Employee's core responsibilities include:

- Directing a team of approximately 85 engineers across 6 product squads
- Defining and executing the company's multi-year technical roadmap
- Establishing engineering best practices, OKRs, and performance standards
- Overseeing cloud infrastructure (AWS/GCP) and DevSecOps pipelines
- Collaborating with Product, Design, and Executive leadership on strategic initiatives
- Managing an annual engineering budget of approximately \$12 million

1.3 Employee agrees to devote substantially all of their professional time and attention to Employer and shall not engage in any outside employment or consulting that conflicts with their obligations hereunder without prior written consent.

2. COMPENSATION & BENEFITS

Compensation Element	Amount / Terms
Base Salary	\$295,000 per annum, paid bi-weekly
Annual Performance Bonus	Up to 30% of base salary, based on company and individual KPIs
Sign-On Bonus	\$25,000, paid within 30 days; clawback if resigned within 12 months
Equity Grant	0.45% of fully-diluted shares; 4-year vest, 1-year cliff; subject to Board approval
Health Insurance	Medical (PPO Gold), Dental, Vision — 100% employer-paid for Employee + family
401(k)	4% employer match, immediate vesting

PTO	Unlimited PTO policy (minimum 15 days recommended annually)
Professional Development	\$8,000 annual budget for conferences, certifications, and training
Home Office Stipend	\$2,500 one-time setup + \$150/month

3. AT-WILL EMPLOYMENT & TERMINATION

3.1 **At-Will.** Employment with Employer is at-will, meaning either party may terminate the relationship at any time, for any reason or no reason, with or without cause and with or without advance notice, subject to the severance provisions below.

3.2 **Termination Without Cause by Employer.** If Employer terminates Employee without Cause, Employee shall receive: (a) 6 months' base salary continuation; (b) COBRA premium reimbursement for 6 months; and (c) acceleration of 12 months of unvested equity, conditioned upon execution of a mutual release of claims.

3.3 **Termination for Cause.** "Cause" means: (i) willful misconduct; (ii) conviction of a felony; (iii) material breach of this Agreement or Company policies after notice and 10-day cure period; or (iv) fraud or embezzlement.

3.4 **Voluntary Resignation.** Employee shall provide 60 days' written notice. Employer may waive the notice period and place Employee on garden leave at full salary.

4. CONFIDENTIALITY & PROPRIETARY INFORMATION

Employee acknowledges having signed and being bound by NovaSpark's Confidential Information and Inventions Assignment Agreement (CIIAA) attached hereto as Exhibit A, the terms of which are incorporated herein by reference. All inventions, developments, and intellectual property created within the scope of employment are assigned to Employer.

5. NON-SOLICITATION & NON-COMPETE

5.1 **Non-Solicitation (24 months post-termination).** Employee shall not, directly or indirectly, solicit or hire any NovaSpark employee, contractor, or consultant with whom Employee had material contact during the final 24 months of employment.

5.2 **Non-Competition (12 months post-termination).** Employee shall not engage in or assist any Competitive Business (defined as any entity providing SaaS-based operational intelligence platforms with annual revenues exceeding \$5 million) within the State of Washington. Employee acknowledges receiving adequate consideration for this restriction.

6. ARBITRATION OF DISPUTES

Except for injunctive relief, all disputes arising out of or related to this Agreement or Employee's employment shall be resolved by binding arbitration under JAMS Employment Arbitration Rules in Seattle, Washington. Class action waiver: Employee waives any right to participate in a class or collective action against Employer.

SIGNATURES

NovaSpark Inc.

Employee

By: _____ Name: Sandra R. Liu Title:
Chief People Officer

Signature

Date

By: _____ Name: Alexander P.
Thornton Title: VP Engineering

Signature

Date